

Tentative Rulings for July 22, 2026

Department 10

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 10 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 888 5460**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2300147	MCCOY. vs FLEETWOOD ALUMINUM PRODUCTS, INC.	MOTION FOR SUMMARY JUDGMENT OR IN THE ALTERNATIVE SUMMARY ADJUDICATION

Tentative Ruling: The hearing on this matter is continued to July 23, 2026, at 8:30 a.m.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2400354	EMERGENCY MEDICAL OFFICE, INC. vs AYOBİ, INC.	MOTION FOR ATTORNEYS FEES

Tentative Ruling: The Court GRANTS, in part, and DENIES, in part, Defendant Ayobi and Ayobi Inc.'s Motion for Attorney's Fees and Costs. The Court awards fees to Defendants at an hourly rate to \$600, resulting in a lodestar of \$33,900 for 56.5 hours, and fees as requested in the amount of \$450, all to be paid within thirty days of this Order.

In moving for fees and costs, Defendants refer the Court to attorney Lennemann's Declaration, ¶¶ 9-17, asserting that 56.5 hours were expended in this matter at a "reasonable" hourly rate of \$1,200. Additionally, per ¶18, Defendants state that they reasonably incurred costs in the amount of \$450.

It is undisputed that (1) Plaintiff executed they Settlement Agreement and Mutual Release of Claims Agreement; (2) that the Agreement contains a reciprocal prevailing party attorney's fee provision; (3) that Plaintiff failed to make either payment required by the Agreement and failed to respond to Defendants' attempts at informal resolution (both pre and post-Judgment); (4) that Defendants prevailed on its Breach of Contract claim at Trial; and (5) that the Court entered Judgment awarding Defendants damages, prejudgment interest, attorney's fees "Per Motion," and costs "Per Cost Bill."

A. CCP § 664.6 is not the only mechanism to enforce the Agreement

In the Opposition, Plaintiff contends that Defendants should have proceeded exclusively through CCP § 664.6 because the Agreement was written and signed. Therefore, Plaintiff's argument that virtually every attorney task performed after the filing of the Cross-Complaint was unnecessary fails. Nothing in Section 664.6 provides that it is the exclusive method for enforcing a settlement agreement. The issue before this Court is not whether another procedural option may also have existed. The issue is whether the legal services reflected in counsel's billing records were reasonably incurred in successfully enforcing the Agreement. And they appear to have been.

B. Plaintiff's authorities are not on point

Plaintiff relies on cases and suggests those decisions compel either denial or a drastic reduction of AYOB's contractual attorney's fees. They do not.

Chavez v. City of Los Angeles (2010) 47 Cal.4th 970 does not apply to a prevailing party's contractual fee recovery under CC § 1717. Plaintiff cites this case to contend that Defendants' fee request is disproportionate to the amount recovered and therefore should be denied. *Chavez* involved discretionary statutory attorney's fees under the Fair Employment and Housing Act following a limited damages award in a case that could have been brought as a limited civil action. The Supreme Court recognized that the governing statute vested broad discretion in the trial court to determine whether fees should be awarded under those circumstances. Here, Defendants seek contractual attorney's fees pursuant to an express attorney's fee provision governed by Civil Code § 1717. Unlike the statutory scheme considered in *Chavez*, Section 1717 exists to enforce the parties' contractual allocation of litigation expenses and to ensure reciprocity between contracting parties. Importantly, *Chavez* did not hold that attorney's fees exceeding the amount recovered are presumptively unreasonable. Nor did it establish any proportionality rule applicable to Civil Code Section 1717.

Another example is *Christian Research Institute v. Alnor* (2008) 165 Cal.App.4th 1315, cited for the proposition that an inflated fee request may justify denial of fees altogether. However, in *Christian Research Institute*, the trial court found that the prevailing party sought compensation for duplicated attorney effort, excessive staffing, unnecessary work, and time unrelated to the successful anti-SLAPP motion itself. The Court of Appeal affirmed the trial court's exercise of discretion under those facts, which are distinguishable from the instant case. Defendants here were represented by a single attorney. There was no duplication of attorney effort. There was no request for a multiplier. There were no multiple firms billing simultaneously. There were no unsuccessful contract claims requiring apportionment. Rather, here, counsel devoted approximately 56.5 hours over seventeen months to prosecuting one successful breach of contract claim from inception through trial, entry of Judgment, and preparation of the fee Motion.

C. The billings are sufficiently detailed

Plaintiff characterizes defense counsel's billing records as "vague" and "block billed." However, Defendants counsel identified (1) each date services were performed; (2) the amount of time devoted to the work; (3) the litigation event involved; and (4) the specific tasks performed. Plaintiff challenges entries such as preparation for hearings, client communications, drafting pleadings, preparation of case management documents, trial preparation, attendance at trial, preparation of judgment documents, and preparation of attorney-fee motion. These descriptions allow meaningful review to determine if the time expended was reasonable. There does not appear to be excess

billing. Notably, Plaintiff never identifies a single entry that is fabricated, unrelated to the successful contract claim, or demonstrably unnecessary. Instead, Plaintiff asks the Court to disregard entire categories of work solely because it believes Defendants should have pursued a different litigation procedure. Defendant does not challenge the accuracy of the billing records, but rather the strategy in enforcing the Agreement.

D. Necessary Hours Expended

As Defendants note, Plaintiff argues repeatedly that the Court must exclude from the fee calculation law and motion, trial preparation, trial attendance, case-management conferences, judgment preparation, and post-trial work because that work would have been unnecessary had Defendant filed a CCP § 664.6 motion. The argument ignores the litigation that occurred. After Plaintiff failed to perform the Agreement, Defendant pursued a breach of contract claim in pending litigation initiated by Plaintiff. Plaintiff answered. Plaintiff continued litigating. The matter proceeded through entry of Judgment and this attorney's fee Motion. Each stage of litigation required legal services. Once Plaintiff elected to contest liability rather than cure its breach, defense counsel had to litigate the case through judgment. The Court evaluates the legal services rendered considering the circumstances confronting counsel at the time - not through post-litigation hindsight. Significantly, the Agreement expressly authorizes recovery of attorney's fees incurred not only in "demonstrating the existence of a breach," but also in "any other contract enforcement efforts."

E. Counsel's Hourly Rate

Counsel charges \$1,200 per hour. In moving papers, Defendant submitted "evidence" establishing that its requested hourly rate had been previously approved by another recent California Superior Court proceeding. While not binding on this Court, Defendants contend that evidence is probative of the market value assigned to counsel's professional services.

The relevant inquiry is the reasonable market value of comparable legal services in the community for the type of work performed. (*PLCM Group, v. Drexler* (2000) , 22 Cal.4th 1084, 1095.) An hourly rate of \$1,200 to enforce a contract is excessive. The Court reduces the hourly rate to \$600, resulting in a lodestar of \$33,900 for 56.5 hours claimed.

F. Plaintiff cannot rewrite the parties Agreement

Here, the parties' Agreement holds the breaching party responsible for "all reasonable attorneys' fees and costs" incurred by the non-breaching party in enforcing the Agreement, including "demonstrating the existence of a breach and any other contract enforcement efforts." The Agreement does not state: (1) that attorney's fees shall be limited to those incurred in a Section 664.6 motion; (2) that pre-trial or trial related attorney's fees are excluded; (3) that fees may not exceed the amount in controversy; (4) that law and motion, case-management proceedings, trial preparation,

or post-judgment proceedings are non-compensable; or (5) that attorney's fees somehow become unrecoverable whenever opposing counsel later - in hindsight - identifies an arguably less expensive procedural alternative. Had the parties intended to impose any of those limitations, they could have done so.

G. Costs

Rule 3. 1700 of the California Rules of Court establishes a procedure for contesting costs through a motion to tax costs. (*Kaufman v. Diskeeper Corp.* (2014) 229 Cal. App. 4th 1, 8.) Defendants filed their Memorandum of Costs on June 1, 2026, concurrent with this Motion. Any Motion to Tax/Strike Costs on or before June 18, 2026. (CRC 3. 1700(b)(I).) Plaintiff waived any objection to Defendants' costs. (*Douglas v. Willis* (1994) 27 Cal.App.4th 287, 290.)

3.

CASE #	CASE NAME	HEARING NAME
CVRI2404359	OLW LAX INC. vs DENG	MOTION TO SET ASIDE ENTRY OF DEFAULT

Tentative Ruling: To the extent that self-represented defendant Elijah Deng moves to set aside the default entered against Lion King Trucking Inc. on October 24, 2024, the Court **DENIES** the motion as procedurally defective because a corporation must be represented by counsel. To the extent that self-represented defendant Elijah Deng moves to set aside the default entered against him on November 1, 2024, the Court **DENIES** that motion. Although Defendant asserts that he had no actual knowledge of the entry of default, he provides no evidence of that; i.e., no travel records, no passport stamps, and no other competent evidence to support this assertion.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2506582	MOORE-THILL vs SPICER	DEMURRER ON COMPLAINT

Tentative Ruling: The Court **SUSTAINS** the demurrer without leave to amend because Plaintiff has not articulated a basis to amend.

Statute of Limitations

A demurrer can be used only to challenge defects appearing on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318), and it is error for a court to consider facts asserted in a supporting memorandum. (*Ion Equipment Corp. v. Nelson* (1980) 110 Cal.App.3d 868, 881; *Afuso v. United States Fid. & Guar. Co.* (1985) 169 Cal.App.3d 859, 862, *disapproved on other grounds* in *Moradi-Shalal v. Fireman's Fund Ins. Co.* (1988) 46 Cal.3d 287.) Thus, a demurrer based upon a statute of limitations only lies where the

running of the statute “clearly and affirmatively” appears on the face of the complaint. (*Committee for Green Foothills v. Santa Clara County Bd. of Supervisors* (2010) 48 Cal.4th 32, 42.)

CCP § 340.5 provides in relevant part:

In an action for injury or death against a health care provider based upon such person’s alleged professional negligence, the time for the commencement of action shall be three years after the date of injury or one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the injury, whichever occurs first. In no event shall the time for commencement of legal action exceed three years unless tolled for any of the following: (1) upon proof of fraud, (2) intentional concealment, or (3) the presence of a foreign body, which has no therapeutic or diagnostic purpose or effect, in the person of the injured person.

The limitations period under CCP § 340.5 begins to run when a plaintiff suspects or should suspect that her injury was caused by wrongdoing. (*Kitzig v. Nordquist* (2000) 81 Cal.App.4th 1384, 1391, quoting *Jolly v. Eli Lilly & Co.* (1988) 44 Cal.3d 1103, 1110.) The rule sets forth two alternate tests for triggering the limitations period: (1) a subjective test requiring actual suspicion by the plaintiff that the injury was caused by wrongdoing; and (2) an objective test requiring a showing that a reasonable person would have suspected the injury was caused by wrongdoing. (*Kitzig*, supra, 81 Cal.App.4th at 1391.) The earliest to occur triggers the limitations period. (*Ibid.*) Importantly, a demurrer based on a statute of limitations will not lie where the action may be, but is not necessarily, barred. (*Larson v. UHS of Rancho Springs, Inc.* (2014) 230 Cal.App.4th 336, 342.) That is, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred. (*Ibid.*)

Defendant, MGMC, argues that the FAC alleges injury arising from events occurring in February of 2021 so, the three-year limitation period expired no later than February of 2024, but this action was not filed until December of 2025. MGMC asserts that while Plaintiff had imaging done in 2025 that confirmed mal-positioning of instrumentation, that fact did not restart or extend the applicable statute of limitations period. MGMC argues that once appreciable injury exists, later confirmation does not delay accrual. (*Jolly v. Eli Lilly & Co.* (1988) 44 Cal.3d 1103, 1110-1111.) Defendant adds that no allegations indicate any tolling of the limitations’ deadline.

In the Opposition, Plaintiff states: “Discovery occurred upon later imaging confirming spinal canal intrusion. This is a factual issue not resolvable on demurrer.” (Oppo. p. 1: 14-15.) Plaintiff’s argument indicates that she knew an injury had occurred as the later imaging confirmed her injury. The FAC alleges only one negligent event that occurred on 2/16/21 during lumbar spine surgery performed by Dr. Spicer. (FAC ¶¶ 1-2.) The FAC alleges that when she woke from the anesthesia, she experienced pain and neurological symptoms that were different from what was expected. (FAC ¶¶ 7-8.)

“In 2025 diagnostic imaging confirmed the mal-positioned spinal instrumentation placed during the February 2021 surgery.” (FAC ¶ 10.) Plaintiff does not allege that she had any other injuring event occur between her February of 2021 spinal surgery, and the December of 2025 confirmation of her prior injury. Instead, she clearly connects her injuries to the February of 2021 surgery. Based on the allegations on the face of the FAC, Plaintiff’s lawsuit was untimely filed after the three-year statute of limitations period had already expired, and she has not alleged any exception based on fraud, intentional concealment, or the presence of a non-therapeutic foreign body, or any other basis for tolling. The Court sustains the demurrer without leave to amend, because Plaintiff has not articulated a basis to amend.

1st Cause of Action for Medical Negligence and 2nd Cause of Action for Negligent Credentialing and Supervision

The elements of a negligence cause of action are: (1) a legal duty to use due care; (2) breach of such duty; (3) the breach was the proximate or legal cause of resulting injuries. (*Ladd v. County of San Mateo* (1996) 12 Cal. 4th 913, 917.)

Defendant, MGMC, argues that there are no factual allegations attributed to it to establish liability. The FAC is alleged as to “Defendants” collectively, which includes parties with differing roles in the alleged events. MGMC argues that the FAC’s focus is on the surgical procedure and decisions made during treatment, but does not separately assert facts as to MGMC, its nursing staff, administrative personnel, nor does it assert a specific duty owed by MGMC to Plaintiff.

In the Opposition, Plaintiff only argues that the “[h]ospital failed to monitor and respond to neurological symptoms.” (Oppo. p. 1:17-18.) This is not only a vague allegation, but also, it is not alleged in the FAC.

As to the 2nd cause of action, there are no ultimate facts as to MGMC’s supervision of or credentialing of the physicians who treated Plaintiff including Dr. Spicer. “[T]he hospital is in the best position to evaluate the competence of physicians it, in its discretion, allows to perform surgery and to practice within its premises.” (*Elam v. College Park Hospital* (1982) 132 Cal.App.3d 332, 345.) Yet, no legal duty is specifically attributed to MGMC.

In the Opposition, Plaintiff merely states that duty and breach were adequately alleged. (Oppo. p. 1:22-23.) She also states the doctor was on probation requiring a proctor, but no proctor was present, making the Hospital liable. (Oppo. p. 1:24-26.) This second assertion is similarly not alleged in the FAC.

Based on the foregoing, the FAC fails to allege facts sufficient to constitute a cause of action and is uncertain. Thus, Court sustains the demurrer without leave to amend because Plaintiff has not articulated a basis to amend.